

		filing the motion. Plaintiffs addressed the issue for the first time on 04/22/2026, hours before filing this motion. In addition, Plaintiffs do not show that any private information requested is on par with trade secret information, such that it should be limited to attorneys' eyes only. Because counsel's actions cannot waive the clients' privacy rights, the court DENIES this request <u>without prejudice</u> to the parties' submitting a stipulated protective order pertaining to the treatment and maintenance of confidential information. <u>Extension to Respond</u> Plaintiffs request the court extend to 06/10/2026 the deadline to respond to Defendant Pali's first set of written discovery. The court finds good cause to extend the deadline for Plaintiffs' request, given the number of requests propounded. No later than 09/25/2026, Plaintiff Sandoval and Plaintiff Johnson SHALL provide verified, code-compliant responses to Form Interrogatories (Set One), Special Interrogatories (Set One), RFAs (Set One), and RFPs (Set One) propounded by Defendant Pali. <u>Sanctions</u> Defendant Pali request monetary sanctions against Plaintiffs' counsel Lex Rex Institute, Alexander Haberbusch, and Deborah Pauly in the amount of \$12,000. The court finds the circumstances make the imposition of monetary sanctions unjust and on that basis, DENIES Defendant Pali's request for monetary sanctions. (<i>See</i> Code Civ. Proc., § 2017.020(b).) Plaintiffs to give notice.
7.	LEOS VS. LEE 2023-01326455	MOTION TO REQUIRE PLAINTIFF TO FILE AN UNDERTAKING Defendant Joanna Cloonan's Motion for an Order Requiring Plaintiff Joey Leos to Post an Undertaking is DENIED. The Court notes there is no proof of service attached to Plaintiff's opposition. Plaintiff is reminded to file a proof of service with any supporting or opposing papers. <u>Objections and Request for Judicial Notice</u> Plaintiff's objection to Laskey's Declaration are overruled.

Plaintiff's objections to Cloonan's request for judicial notice are sustained as to the truth of the matters asserted in the press release but not as to the fact the Orange County District Attorney's Office issued the press release. The Court can take judicial notice of the "existence, content, and authenticity" of the press release, however, it is inadmissible for "the truth of all matters stated therein." (*People v. Castillo* (2010) 49 Cal.4th 145, 158, (cleaned up).)

Additionally, the subject matter of the press release is not proper under Subdivision (h) either. "Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter. The statute has also been used on demurrer to take judicial notice of facts commonly known in a community such as ownership, easements and control over land and the history and operation of a local museum." (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 (cleaned up).)

Accordingly, Cloonan's request for judicial notice of the Orange County District Attorney's Office press release is granted only as to the fact the press release exists and its contents, however, not as to the truth of the matters stated therein.

Merits

Residency

Plaintiff did not oppose that he is not a California resident.

Reasonable Possibility of Prevailing

The moving party has "the burden of proof to show entitlement to such relief." (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 432.) Defendants "were not required to show that there was no possibility that [plaintiffs] could win at trial, but only that it was *reasonably possible* that [defendants] would win." (*Baltayan v. Estate of Getemyan, supra*, 90 Cal.App.4th at 1432 [emphasis in original].)

Evidence needed for an undertaking is less than that needed for summary judgment or even a special motion to strike; rather, to satisfy the requirements of section 1030, defendant must produce sufficient evidence to demonstrate they have a reasonable possibility of winning, but no more. (*Baltayan v. Getemyan* (2001) 90 Cal. App. 4th 1427, 1442.)

Here, Cloonan's only evidence in support of her defense of a superseding criminal act by Eriz is not a proper subject of judicial notice. Thus, Cloonan has failed to meet her low burden of evidence

by failing to submit any admissible evidence in support as to the first cause of action.

As to 3rd and 4th causes of action, Cloonan submits no evidence and only argues they fail as a matter of law.

“There are several potential bases for a cause of action seeking restitution. For example, restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. [Citations.] Alternatively, restitution may be awarded where the defendant obtained a benefit from the plaintiff by fraud, duress, conversion, or similar conduct. In such cases, the plaintiff may choose not to sue in tort, but instead to seek restitution on a quasi-contract theory.... [Citations.] In such cases, where appropriate, the law will imply a contract (or rather, a quasi-contract), without regard to the parties' intent, in order to avoid unjust enrichment.” (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 388.)

“Under the law of restitution, an individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another's expense. However, the fact that one person benefits another is not, by itself, sufficient to require restitution. The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two individuals, it is *unjust* for the person to retain it.” (*Id.* at 389 [emphasis in original] (cleaned up).)

“In keeping with the doctrine's focus on the *unjust* nature of the enrichment, it is well settled that restitution will be denied where application of the doctrine would involve a violation or frustration of the law or opposition to public policy. Thus, determining whether it is unjust for a person to retain a benefit may involve policy considerations. For example, if a person receives a benefit because of another's mistake, policy may dictate that the person making the mistake assumes the risk of the error. Moreover, a person otherwise entitled to restitution may lose that entitlement if restitution would seriously impair the protection intended to be afforded by common law or by statute to persons in the position of the transferee or of the beneficiary, or to other persons. (*Ibid.* [emphasis in original].)

Plaintiff claims Cloonan, Lacy, and himself agreed to create a joint GoFundMe campaign “in order to recover money for the loss and death of AIDEN, to provide some monetary compensation to pay for the costs of AIDEN’s funeral expenses and for emotional injuries which caused pain and suffering.” (Compl., ¶ 52.) Plaintiff also alleges Lacy agreed to act on behalf of all parties. (Compl., ¶ 53.) Defendant claims the cause of action fails against her because the Complaint does not allege she obtained the benefit by “fraud, duress, conversion, or similar wrongful conduct.” (Mot., p. 7.) However, Plaintiff claims Cloonan misappropriated the GoFundMe

		funds. (Compl., ¶ 58.) Thus, Cloonan has failed to demonstrate Plaintiff's claims are barred by law and, thus, has failed to show a reasonable possibility of prevailing in the lawsuit. Accordingly, the Motion is denied.
8.	DAILY REALTY PARTNERS, LP VS. KOPPI 2025-01517126	1. DEMURRER TO AMENDED COMPLAINT Defendant Megan Koppi as Trustee of The MMD Trust, established July 14, 2015's Demurrer to Plaintiffs Daily Realty Partners, LP and Daily Downey Avenue, LLC's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. <u>First Cause of Action for Breach of Written Contract – DDA Agreement</u> "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) Plaintiffs allege: - Defendants are parties to a written operating agreement dated 12/21/17, which governs DDA (the DDA Agreement). (FAC ¶ 47.) - DDA has fulfilled all obligations and conditions which were required to perform under the DDA Agreement, except for those obligations which were excused. (FAC ¶ 49.) - Section 6.6 of the DDA agreement provides that, "[i]n accordance with the [California Revised Uniform Limited Liability Company] Act, a Member may, under certain circumstances, be required to return the Company, for the benefit of the Company's creditors, amounts previously distributed to the Member." (FAC ¶ 50.) - Defendants breached the Agreement by refusing to return a portion of the February 2023 distribution to Defendants to cover their pro rata share of DDA's legal expenses owed to DDA's creditors. (FAC ¶ 51.) - As a direct and proximate result of Defendants' breaches of contract, DDA has been damaged in the amount to be determined at trial. (FAC ¶ 52.) These allegations are sufficient at the pleading stage. To the extent Defendant contends the DDA does not impose a repayment obligation, that analysis is not appropriate for purposes of demurrer. The Court OVERRULES the demurrer to the first cause of action.